

TENDER 20488 for
5 Utility Vehicles for Ontario Parks

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PART 1 – DEFINITIONS

The following definitions are applicable to this RFB.

Unless otherwise specified in this RFB, capitalized words and phrases have the meaning set out in the Form of Agreement (Part 2) to this RFB.

“Accessible” means that which can be easily reached or obtained; a facility that can be easily entered; information that can be easily accessed; posing no obstacles to persons with disabilities.

“Accessibility” means a general term which is used to describe the degree of ease that something (e.g., device, service, and environment) can be used and enjoyed by persons with a disability. The term implies conscious planning, design and/or effort to ensure it is barrier-free to persons with a disability, and by extension, usable and practical for the general population as well.

“Bid” means all documentation submitted by a Bidder in response to the RFB or in respect of the RFB.

“Bidder” means the legal entity that submits a Bid in response to this RFB.

Canadian Business” means a supplier, manufacturer or distributor of any business structure that conducts its activities on a permanent basis in Canada. The business either:

- i. has its headquarters or main office in any province or territory within Canada, or
- ii. has at least 250 full-time employees in any one province or territory within Canada at the time of the applicable procurement process.

“Commercial Envelope” means Section 3 of the RFB, as set out on the Ontario Tenders Portal eTendering System.

“Commercial Response” means all quoted pricing for the Deliverables as found in the Bidder’s response to the Commercial Envelope and any related attachments.

“Deliverable(s)” means all goods and/or services and work to be provided or performed by the Bidder, pursuant to the Agreement entered into, if any, pursuant to this RFB and includes everything that is necessary to be supplied, done or delivered by the Bidder.

“OTP” and “Ontario Tenders Portal eTenderingSystem” means the Ontario Tenders Portal electronic tendering system currently hosted by Jaggear.

“Preferred Bidder” means the Bidder (or Bidders in the case of a multiple vendor opportunity) who has the highest cumulative score at the conclusion of the evaluation process set out in the Qualification Envelope.

“Qualification Envelope” means Section 1 of the RFB as set out on the Ontario Tenders Portal eTendering System.

“Qualification Response” means the Bidder’s response to the Qualification Envelope, any related attachments and includes the Form of Offer.

“RFB Closing Date and Time” means the Bid submission date and time as set out in the RFB and as may be amended from time to time in accordance with the terms of the RFB.

“RFB Contact” means the person listed in Section 1.1 – Procurement Details.

“Vendor” means the entity that is selected to provide goods or services to the Ministry.

End of Definitions

Tender_20488

PART 2 – FORM OF AGREEMENT

Agreement

Between

His Majesty the King in right of Ontario
as represented by the Minister of the Environment, Conservation
and Parks

and

[insert Legal Name of Vendor**]**

**For the Supply and Delivery of
5 Utility Vehicles for Ontario Parks**

Effective Date: Month DD, 2025

Agreement No.: MECP Tender_20488

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Agreement

This Agreement (the “**Agreement**”), made in duplicate, for the Supply and Delivery of a 5 Utility Vehicles for Ontario Parks is effective as of **Month DD**, 2025.

Between:

His Majesty the King in right of Ontario
as represented by the Minister of the Environment, Conservation and Parks
(referred to as the “Ministry”)

And:

[**insert Legal Name of Vendor**]

(referred to as the “Vendor”)

In consideration of their respective agreements set out below, the parties covenant and agree as follows:

Article 1 – Interpretation and General Provisions

1.01 Defined Terms

When used in the Agreement, the following words or expressions have the following meanings:

“**Authorities**” and “**Authority**” means any government authority, agency, body or department, whether federal, provincial or municipal, having or claiming jurisdiction over the Contract;

“**Bid**” means all the documentation submitted by the Vendor in response to the RFB;

“**Bidder**” means the legal entity that submits a Bid in response to the RFB;

“**Business Day**” means any working day, Monday to Friday inclusive, but excluding statutory and other holidays, namely: New Year's Day; Family Day; Good Friday; Easter Monday; Victoria Day; Canada Day; Civic Holiday; Labour Day; National Day for Truth and Reconciliation; Thanksgiving Day; Remembrance Day; Christmas Day; Boxing Day and any other day which the Ministry has elected to be closed for business;

“**Client**” means any entity falling within the Ontario Public Service;

“**Conflict of Interest**” includes, but is not limited to, any situation or circumstance where:

- (a) in relation to the RFB process, the Bidder has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including, but not limited to (i) having or having access to information in the preparation of its Bid that is confidential to the Crown and not available to other Bidders; (ii) communicating with any person with a view to influencing preferred treatment in the RFB process including the giving of a benefit of any kind, by or on behalf of the Bidder to anyone employed by, or otherwise connected with, the Ministry; or (iii) engaging in conduct that compromises or could be seen to compromise the integrity of the open and competitive RFB process and render that process non-competitive and unfair; or
- (b) in relation to the performance of its contractual obligations in a Crown contract, the Vendor's other commitments, relationships or financial interests (i) could or could be seen to exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgement; or (ii) could or could be seen to compromise, impair or be incompatible with the effective performance of its contractual obligations;

“Contract” means the aggregate of: (a) the Agreement, including Schedule 1 (Mandatory Business and Technical Requirements, Description of Deliverables, Rates and Supplementary Provisions), and any other schedule attached at the time of execution; (b) the RFB, including any addenda and attachments; (c) the Bid; and (d) any amendments executed in accordance with the terms of the Agreement;

“Deliverables” and **“Deliverable”** means everything developed for or provided to the Ministry in the course of performing under the Contract or agreed to be provided to the Ministry under the Contract by the Vendor or the Vendor's Personnel, as further defined, but not limited by Schedule 1, including, but not limited to, any goods or services or any and all Intellectual Property and any and all concepts, techniques, ideas, information, documentation and other materials, however recorded, developed or provided;

“Direct Deposit” means the electronic transfer of funds by the Client to the financial institution identified by the Vendor, in accordance with the Direct Deposit Protocols;

“Direct Deposit Protocols” means the protocols set out at [Doing Business with Ontario](#), which may be amended from time to time as required by Ontario;

“Employer” means a person who employs one or more workers or contracts for the services of one or more workers and includes a contractor or subcontractor who performs work or supplies services and a contractor or subcontractor who undertakes with an owner, contractor or subcontractor to performance work or supply services.

“Expiry Date” means [insert];

“FIPPA” means the *Freedom of Information and Protection of Privacy Act*, R.S.O. 1990, c. F.31, as amended;

“Fiscal Year” means the period running from April 1 in one calendar year to, and including, March 31 in the next calendar year;

“Indemnified Parties” means each of the following and their directors, officers, advisors, agents, appointees and employees: Ontario and the members of the Executive Council of Ontario;

“Industry Standards” include, but are not limited to (a) the provision of any and all labour, supplies, equipment and other goods or services that are necessary and can reasonably be understood or inferred to be included within the scope of the Contract or customarily furnished by Persons providing Deliverables of the type provided hereunder in similar situations in Ontario and; (b) adherence to commonly accepted norms of ethical business practices, which shall include the Vendor establishing, and ensuring adherence to, precautions to prevent its employees or agents from providing or offering gifts or hospitality of greater than nominal value to any person acting on behalf of or employed by His Majesty the King in right of Ontario;

“Intellectual Property” means any intellectual, industrial or other proprietary right of any type in any form protected or protectable under the laws of Canada, any foreign country, or any political subdivision of any country, including, without limitation, any intellectual, industrial or proprietary rights protected or protectable by legislation, by common law or at equity;

“Losses” means liabilities, costs, damages and expenses (including legal, expert and consulting fees);

“Ministry Address” and **“Ministry Representative”** mean:

[insert address]

Ministry Representative: [insert name]

Telephone: [insert number]

E-mail: [insert email]

“Newly Created Intellectual Property” means any Intellectual Property created by the Vendor in the course of performance of its obligations under the Contract;

“Ontario” means His Majesty the King in Right of Ontario;

“Ontario Public Service” and **“OPS”** means the ministries and other administrative units of Ontario over which the ministers of Ontario preside and includes agencies, boards and commissions.

“OPS Confidential Information” means all information of the Ontario Public Service that is of a confidential nature, including all confidential information in the custody or control of the OPS, regardless of whether it is identified as confidential or not, and whether recorded or not, and however fixed, stored, expressed or embodied, which

comes into the knowledge, possession or control of the Vendor in connection with the Agreement. For greater certainty, OPS Confidential Information shall:

- (a) include: (i) all new information derived at any time from any such information whether created by the OPS, the Vendor or any third-party; (ii) all information (including Personal Information) that the OPS is obliged, or has the discretion, not to disclose under provincial or federal legislation or otherwise at law; but
- (b) not include information that: (i) is or becomes generally available to the public without fault or breach on the part of the Vendor of any duty of confidentiality owed by the Vendor to the OPS or to any third-party; (ii) the Vendor can demonstrate to have been rightfully obtained by the Vendor, without any obligation of confidence, from a third-party who had the right to transfer or disclose it to the Vendor free of any obligation of confidence; (iii) the Vendor can demonstrate to have been rightfully known to or in the possession of the Vendor at the time of disclosure, free of any obligation of confidence when disclosed; or (iv) is independently developed by the Vendor; but the exclusions in this subparagraph shall in no way limit the meaning of Personal Information or the obligations attaching thereto under the Contract or at law;

“Person” if the context allows, includes any individuals, firms, partnerships or corporations or any combination thereof;

“Personal Information” means recorded information about an identifiable individual or that may identify an individual;

“Proceeding” means any action, claim, demand, lawsuit, or other proceeding;

“Procurement Card” means the corporate charge card(s) used by the Ministry, as may be changed from time to time;

“Procurement Card Protocols” means the manner in which the Vendor is required to process any payments under the Contract that the Ministry elects to make by way of Procurement Card, which shall include the requirement to: (a) collect the authorized employee's name, the abbreviated Ministry name, the expiry date, and the employee's authorization; (b) contact the financial institution identified on the Procurement Card each time the Procurement Card is used for payment; (c) receive payment from the financial institution named on the Procurement Card once that institution authorizes payment; and (d) bear the cost of any and all charges relating to the use of the Procurement Card, including the financial institution's charges for payment through the Procurement Card;

“Rates” and **“Rate”** means the applicable price, in Canadian funds, to be charged for the applicable Deliverables, as set out in Schedule 1, representing the full amount chargeable by the Vendor for the provision of the Deliverables, including, but not limited to: (a) all applicable duties and taxes, excluding Ontario Harmonized Sales Tax (HST); (b) all labour and material costs; (c) all travel and carriage costs; (d) all

permit, licence and approval costs (e) all insurance costs; and (f) all other overhead including any fees or other charges required by law;

“Record”, for the purposes of the Contract, means any recorded information in the custody or control of the Ministry, including any Personal Information, in any form: (a) provided by the Ministry to the Vendor, or provided by the Vendor to the Ministry, for the purposes of the Contract; or (b) created by the Vendor in the performance of the Contract; and shall exclude any information specifically described in Schedule 1;

“Requirements of Law” mean all applicable requirements, laws, statutes, codes, acts, ordinances, approvals, orders, decrees, injunctions, by-laws, rules, regulations, official plans, permits, licences, authorisations, directions, and agreements with all Authorities that now or at any time hereafter may be applicable to either the Contract or the Deliverables or any part of them;

“RFB” means the Request for Bids, which includes the Qualification, Technical, and Commercial Envelopes as set out on the Ontario Tenders Portal eTendering System, as well as any addenda and attachments to it; dated [insert date] for the Supply and Delivery of a 5 Utility Vehicles for Ontario Parks, reference number Tender_20488 issued by the Ministry for the Deliverables;

“Subcontractors” means in the case of each party, any contractor of that party or any of its subcontractors at any tier of subcontracting;

“Term” means the period of time from the Effective Date up to and including the Expiry Date

“Third-Party Intellectual Property” means any Intellectual Property owned by a party other than His Majesty the King in right of Ontario or the Vendor.

“Utility Vehicle” or **“UTV”** or **“Side-by-Side”** means a new, maximum 24 horsepower, Utility Vehicle as described in section 1.3 – The Deliverables, within Part 3 of the eRFB document [to be within Schedule A of the finalized Agreement].

“Vendor Address” and **“Vendor Representative”** mean:

[**insert name of Vendor**]

[**insert address of Vendor**]

Vendor Representative: fill in

Telephone: fill in

Facsimile: fill in

E-mail: fill in

[**Insert Back-up Vendor Representative information, if available.**]

Back-up Vendor Representative: fill in

Telephone: fill in

Facsimile: fill in

E-mail: fill in

“Vendor’s Intellectual Property” means Intellectual Property owned by the Vendor prior to its performance under the Contract or created by the Vendor during the Term of the Contract, independently of the performance of its obligations under the Contract;

“Vendor's Personnel” includes the directors, officers, employees, agents, partners, affiliates volunteers or Subcontractors of the Vendor;

1.02 No Indemnities from Ministry

Notwithstanding anything else in the Contract, any express or implied reference in any document (including subcontracts) related to the Deliverables under the Contract, to the Ministry providing an indemnity or any other form of indebtedness or contingent liability that would directly or indirectly increase the indebtedness or contingent liabilities of Ontario, whether at the time of execution of the Agreement or at any time during the Term, shall be void and of no legal effect.

1.03 Entire Agreement

The Contract embodies the entire agreement between the parties with regard to the provision of Deliverables and supersedes any prior understanding or agreement, collateral, oral or otherwise with respect to the provision of the Deliverables, existing between the parties at the date of execution of the Agreement.

1.04 Severability

If any term or condition of the Contract, or the application thereof to the parties or to any Persons or circumstances, is to any extent invalid or unenforceable, the remainder of the Contract, and the application of such term or condition to the parties, Persons or circumstances other than those to which it is held invalid or unenforceable, shall not be affected thereby.

1.05 Interpretive Value of Contract Documents

In the event of a conflict or inconsistency in any provisions in the Contract: (a) the main body of the Agreement shall govern over the Schedules to the Agreement; (b) the Agreement (including its Schedules) shall govern over the RFB and the Bid; and (c) the RFB shall govern over the Bid.

1.06 Interpretive Value of Headings

The headings in the Contract are for convenience of reference only and in no manner modify, interpret or construe the Contract.

1.07 Force Majeure

Neither party shall be liable for damages caused by delay or failure to perform its obligations under the Contract where such delay or failure is caused by an event beyond its reasonable control. The parties agree that an event shall not be considered beyond one's reasonable control if a reasonable business person applying due diligence in the same or similar circumstances under the same or similar obligations as those contained in the Contract would have put in place contingency plans to either materially mitigate or negate the effects of such event. Without limiting the generality of the foregoing, the parties agree that force majeure events shall include natural disasters and acts of war, insurrection and terrorism but shall not include shortages or delays relating to supplies or services. If a party seeks to excuse itself from its obligations under the Contract due to a force majeure event, that party shall immediately notify the other party of the delay or non-performance, the reason for such delay or non-performance and the anticipated period of delay or non-performance. If the anticipated or actual delay or non-performance exceeds fifteen (15) Business Days, the other party may immediately terminate the Contract by giving notice of termination and such termination shall be in addition to the other rights and remedies of the terminating party under the Contract, at law or in equity.

1.08 Notices by Prescribed Means

Notices shall be in writing and shall be delivered by postage-prepaid envelope, personal delivery, email or facsimile and shall be addressed to, respectively, the Ministry Address to the attention of the Ministry Representative and to the Vendor Address to the attention of the Vendor Representative. Notices shall be deemed to have been given: (a) in the case of postage-prepaid envelope, five (5) Business Days after such notice is mailed; or (b) in the case of personal delivery, email or facsimile, one (1) Business Day after such notice is received by the other party. In the event of a postal disruption, notices must be given by personal delivery, email or by facsimile. Unless the parties expressly agree in writing to additional methods of notice, notices may only be provided by the methods contemplated in this section.

1.09 Governing Law

The Contract shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein.

1.10 Currency

All references to currency in the Agreement shall be to Canadian dollars.

Article 2 – Nature of Relationship Between Ministry and Vendor

2.01 Vendor's Power to Contract

The Vendor represents and warrants that it has the full right and power to enter into the Contract and there is no agreement with any other Person, which would in any way interfere with the rights of the Ministry under the Contract.

2.02 Representatives May Bind the Parties

The parties represent that their respective representatives have the authority to legally bind them to the extent permissible by the Requirements of Law.

2.03 Vendor Not a Partner, Agent or Employee

The Vendor shall have no power or authority to bind the Ministry or to assume or create any obligation or responsibility, express or implied, on behalf of the Ministry. The Vendor shall not hold itself out as an agent, partner or employee of the Ministry. Nothing in the Contract shall have the effect of creating an employment, partnership or agency relationship between the Ministry and the Vendor (or any of the Vendor's Personnel) or constitute an appointment under the *Public Service of Ontario Act, 2006, S.O. 2006, c. 35, Schedule A*, as amended.

2.04 Responsibility of Vendor

The Vendor agrees that it is liable for its acts and those of the Vendor's Personnel. This section is in addition to any and all of the Vendor's liabilities under the Contract and under the general application of law. The Vendor shall advise these individuals and entities of their obligations under the Contract and shall ensure their compliance with the applicable terms of the Contract. This section shall survive the termination or expiry of the Contract.

2.05 No Subcontracting or Assignment

The Vendor shall not subcontract or assign the whole or any part of the Contract or any monies due under it without the prior written consent of the Ministry. Such consent shall be in the sole discretion of the Ministry and subject to the terms and conditions that may be imposed by the Ministry. Without limiting the generality of the conditions which the Ministry may require prior to consenting to the Vendor's use of a Subcontractor, every contract entered into by the Vendor with a Subcontractor shall adopt all of the terms and conditions of the Contract as far as applicable to those parts of the Deliverables provided by the Subcontractor. Nothing contained in the Contract shall create a contractual relationship between the Vendor's Personnel and the Ministry.

2.06 Duty to Disclose Change of Control

In the event that the Vendor undergoes a change in control the Vendor shall immediately disclose such change in control to the Ministry and shall comply with any terms and conditions subsequently prescribed by the Ministry resulting from the disclosure.

2.07 Conflict of Interest

The Vendor shall: (a) avoid any Conflict of Interest in the performance of its contractual obligations; (b) disclose to the Ministry without delay any actual or potential Conflict of Interest that arises during the performance of its contractual obligations; and (c) comply with any requirements prescribed by the Ministry to resolve any Conflict of Interest. In addition to all other contractual rights or rights

available at law or in equity, the Ministry may immediately terminate the Contract upon giving notice to the Vendor where: (a) the Vendor fails to disclose an actual or potential Conflict of Interest; (b) the Vendor fails to comply with any requirements prescribed by the Ministry to resolve a Conflict of Interest; or (c) the Vendor's Conflict of Interest cannot be resolved. This section shall survive any termination or expiry of the Contract.

2.08 Contract Binding

The Contract shall enure to the benefit of and be binding upon the parties and their successors, executors, administrators and their permitted assigns.

Article 3 – Performance by Vendor

3.01 Commencement of Performance

The Vendor shall commence performance upon receipt of written instructions from the Ministry.

3.02 Compliance with Specifications, Drawings and Data

Where any of the Deliverables delivered to the Ministry do not comply with the specifications, drawings or data contained in the Contract or any other specifications given by the Ministry to the Vendor in accordance with the terms of the Contract, the Ministry may reject the Deliverables without prejudice to its right to insist upon performance of the Contract. Substitutions are not permitted without the written approval of the Ministry.

3.03 Performance Warranty

The Vendor hereby represents and warrants that the Deliverables shall be provided fully and diligently in a professional and competent manner by Persons qualified and skilled in their occupations and furthermore that all Deliverables will be provided in accordance with: (a) the Contract; (b) Industry Standards; and (c) Requirements of Law. If any of the Deliverables, in the opinion of the Ministry, are inadequately provided or require corrections, the Vendor shall forthwith make the necessary corrections at its own expense, as specified by the Ministry in a rectification notice issued pursuant to Section 8.02.

3.04 Use and Access Restrictions

The Vendor acknowledges that unless it obtains specific written preauthorization from the Ministry, any access to or use of OPS property, technology or information, that is not necessary for the performance of its contractual obligations with the Ministry, is strictly prohibited. The Vendor further acknowledges that the Ministry may monitor the Vendor to ensure compliance with this section. This section is in addition to and shall not limit any other obligation or restriction placed upon the Vendor.

3.05 Notification by Vendor to Ministry

During the Term, the Vendor shall advise the Ministry promptly of: (a) any contradictions, discrepancies or errors found or noted in the Contract; (b) supplementary details, instructions or directions that do not correspond with those contained in the Contract; and (c) any omissions or other faults that become evident and should be corrected in order to provide the Deliverables in accordance with the Contract and Requirements of Law.

3.06 Condonation Not a Waiver

Any failure by the Ministry to insist in one or more instances upon strict performance by the Vendor of any of the terms or conditions of the Contract, shall not be construed as a waiver by the Ministry of its right to require strict performance of any such terms or conditions, and the obligations of the Vendor with respect to such performance, shall continue in full force and effect.

3.07 Changes By Written Amendment Only

Any changes to the Contract shall be by written amendment signed by the parties. No changes shall be effective or shall be carried out in the absence of such an amendment.

3.08 Vendor to Comply With Reasonable Change Requests

The Ministry may, in writing, request changes to the Contract, which may include altering, adding to, or deleting any of the Deliverables. The Vendor shall comply with all reasonable Ministry change requests and the performance of such request shall be in accordance with the terms and conditions of the Contract. If the Vendor is unable to comply with the change request, it shall promptly notify the Ministry and provide reasons for such non-compliance. In any event, any such change request shall not be effective until a written amendment reflecting the change has been executed by the parties.

3.09 Pricing for Requested Changes

Where a Ministry change request includes an increase in the scope of the previously contemplated Deliverables, the Ministry shall set out, in its change request, the proposed prices for the contemplated changes. Where the Rates in effect at the time of the change request:

- (a) include pricing for the particular type of goods or services contemplated in the change request, the Vendor shall not unreasonably refuse to provide those goods or services at prices consistent with those Rates; or
- (b) are silent to the applicable price for the particular goods or services contemplated in the change request, the price shall be negotiated between the Ministry and the Vendor within a reasonable period of time;

and in any event, such change request shall not become effective until a written amendment reflecting the change has been executed by the parties.

3.10 Non-Exclusive Contract, Work Volumes

The Vendor acknowledges that it is providing the Deliverables to the Ministry on a non-exclusive basis. The Ministry makes no representation regarding the volume of goods and services required under the Contract. The Ministry reserves the right to contract with other parties for the same or similar goods and services as those provided by the Vendor and reserves the right to obtain the same or similar goods and services internally.

3.11 Performance by Specified Individuals Only

The Vendor agrees that, to the extent that specific individuals are named in the Contract as being responsible for the provision of the Deliverables, only those individuals shall provide the Deliverables under the Contract. The Vendor shall not replace or substitute any of the individuals named in the Contract without the prior written approval of the Ministry, which may not arbitrarily or unreasonably be withheld. Should the Vendor require the substitution or replacement of any of the individuals named in the Contract, it is understood and agreed that any proposed replacement must possess similar or greater qualifications than the individual named in the Contract. The Vendor shall not claim fees for any replacement individual greater than the Rates established under the Contract.

3.12 Security Clearance

The Vendor shall, upon request from the Ministry, require those Persons providing services under the Agreement to submit to security checks and the Vendor may be required to obtain and pay for security clearance. Where such security checks are required the Ministry will provide information on how the Vendor can obtain them.

The Vendor shall provide to the Ministry, upon request, the names, addresses, dates of birth and consents of its Persons for whom security checks are required. The Vendor shall designate a chief security officer as the contact for this purpose. Any Person who is unable to obtain security clearance, or who refuses to consent to such security checks, shall not be permitted to perform services under the Agreement.

Security clearance may be suspended or revoked if any Person fails to maintain security clearance or security standards required pursuant to the Agreement. The Vendor shall notify the Ministry of any personnel changes, behaviours, or circumstances for which security clearance may require reconsideration.

Security clearance is not awarded in perpetuity. The Ministry may perform, or re-perform, security checks against any Person providing services under the Agreement at any time, and will notify the Vendor of this requirement.

The Vendor shall be considered in default of the Agreement if it fails to comply with the requirements of this section or if any security clearance results received by the Ministry are found, in the sole discretion of the Ministry, to be incompatible with the proper and impartial provision of the Deliverables in accordance with the terms and conditions of the Agreement.

3.13 Accessibility Requirements

The Vendor's delivery of the Deliverables shall comply with all applicable requirements, specifications and standards for accessibility established in accordance with the Ontario *Human Rights Code (HRC) R.S.O. 1990, CHAPTER H.19*, the *Ontarians with Disabilities Act, S.O. 2001, CHAPTER 32*, and the *Accessibility for Ontarians with Disabilities Act, 2005, S.O. 2005, c. 11* (Integrated Accessibility Standards), any regulations made thereto and any direction from the Ministry. The Vendor must meet the Government of Ontario's requirements on the Government of Ontario's schedule under the Integrated Accessibility Standards Regulation as directed by the Ministry.

3.14 Ministry Rights and Remedies and Vendor Obligations Not Limited to Contract

The express rights and remedies of the Ministry and obligations of the Vendor set out in the Contract are in addition to and shall not limit any other rights and remedies available to the Ministry or any other obligations of the Vendor at law or in equity.

3.15 Vendor Performance Framework

The Vendor must comply with the Vendor performance requirements set out in Schedule 1. Throughout the Term, Vendor performance will be continually assessed by the Ministry to ensure compliance with the Contract as set out in Schedule 2.

Article 4 – Payment for Performance and Audit

4.01 Payment According to Contract Rates

The Ministry shall, subject to the Vendor's compliance with the provisions of the Contract, pay the Vendor for the Deliverables provided at the Rates established under the Contract.

4.02 Default Billing and Payment Process

Unless the parties expressly set out an alternative billing and payment process in Schedule 1, the following process shall govern:

- (a) the Vendor shall provide the Ministry or Client with a monthly billing statement no later than ten (10) Business Days after the end of each month and that billing statement shall include: (i) the reference number assigned to the Contract by the Ministry; (ii) a brief description of the Deliverables provided for the relevant month; and (iii) taxes, if payable by the Ministry, identified as separate items.
- (b) the Ministry or Client shall approve or reject the billing statement within fifteen (15) Business Days of receipt of the statement and in the event that the Ministry or Client rejects the billing statement, it shall so advise the Vendor promptly in writing and the Vendor shall provide additional

information as required by the Ministry or the Client to substantiate the billing statement;

- (c) each billing statement is subject to the approval of the Ministry or Client before any payment is released and payment shall be made within thirty (30) Business Days of such approval;
- (d) it is acknowledged and agreed that either the Client or Ministry may require that the Vendor include additional information in the billing statement, upon notice to the Vendor; and
- (e) the Ministry or Client may, in its discretion, make payments under the Contract by way of the following methods:
 - i. Direct Deposit and the Vendor shall accept and process any such payments in accordance with the Direct Deposit Protocols; or,
 - ii. Procurement Card and the Vendor shall accept and process any such payments in accordance with Procurement Card Protocols.

and any paragraph set out above, that is not expressly replaced in Schedule 1 with an alternative provision, shall remain in full force and effect.

4.03 Hold Back or Set Off

The Ministry or Client may hold back payment or set off against payment if, in the opinion of the Ministry or Client acting reasonably, the Vendor has failed to comply with any requirements of the Contract.

4.04 No Expenses or Additional Charges

There shall be no other charges payable by the Ministry or Client under the Contract to the Vendor other than the Rates established under the Contract.

4.05 Payment and Collection of Taxes and Duties

The Vendor shall pay or charge and remit, as required, all applicable taxes, including excise taxes incurred by or on the Vendor's behalf with respect to the Contract.

4.06 Withholding Tax

The Ministry or Client shall withhold any applicable withholding tax from amounts due and owing to the Vendor under the Agreement and shall remit it to the appropriate government in accordance with applicable tax laws. This section shall survive any termination or expiry of the Contract.

4.07 Interest on Late Payment

If a payment is in arrears through no fault of the Vendor, the interest charged by the Vendor, if any, for any late payment is subject to required approvals under the *Financial Administration Act*, R.S.O. 1990, c. F-12 and shall not exceed the pre-

judgment interest rate established under Section 127(2) of the *Courts of Justice Act*, R.S.O. 1990, c. C43, in effect on the date that the payment went into arrears.

4.08 Document Retention and Audit

For seven (7) years after the Expiry Date or any date of termination of the Contract, the Vendor shall maintain all necessary records to substantiate (a) all charges and payments under the Contract and (b) that the Deliverables were provided in accordance with the Contract and with Requirements of Law. During the Term, and for seven (7) years after the Term, the Vendor shall permit and assist the Ministry in conducting audits of the operations of the Vendor to verify (a) and (b) above. The Ministry shall provide the Vendor with at least ten (10) Business Days prior notice of its requirement for such audit. The Vendor's obligations under this section shall survive any termination or expiry of the Contract.

Article 5 – Confidentiality and Freedom of Information and Protection of Privacy Act

5.01 Confidentiality and Promotion Restrictions

Any publicity or publications related to the Contract shall be at the sole discretion of the Ministry. The Ministry may, in its sole discretion, acknowledge the Deliverables provided by the Vendor in any such publicity or publication. The Vendor shall not make use of its association with the Ministry without the prior written consent of the Ministry. Without limiting the generality of this section, the Vendor shall not, among other things, at any time directly or indirectly communicate with the media in relation to the Contract, unless it has first obtained the express written authorization to do so by the Ministry.

5.02 OPS Confidential Information

During and following the Term, the Vendor shall: (a) keep all OPS Confidential Information confidential and secure; (b) limit the disclosure of OPS Confidential Information to only those of the Vendor's Personnel who have a need to know it for the purpose of providing the Deliverables and who have been specifically authorized to have such disclosure; (c) not directly or indirectly disclose, destroy, exploit or use any OPS Confidential Information (except for the purpose of providing the Deliverables, or except if required by order of a court or tribunal), without first obtaining: (i) the written consent of the Ministry and (ii) in respect of any OPS Confidential Information about any third-party, the written consent of such third-party; (d) provide OPS Confidential Information to the Ministry on demand; and (e) return all OPS Confidential Information to the Ministry before the end of the Term, with no copy or portion kept by the Vendor.

5.03 Restrictions on Copying

The Vendor shall not copy any OPS Confidential Information, in whole or in part, unless copying is essential for the provision of the Deliverables. On each copy made by the Vendor, the Vendor must reproduce all notices which appear on the original.

5.04 Injunctive and Other Relief

The Vendor acknowledges that breach of any provisions of this Article may cause irreparable harm to the Ministry or to any third-party to whom the Ministry owes a duty of confidence, and that the injury to the Ministry or to any third-party may be difficult to calculate and inadequately compensable in damages. The Vendor agrees that the Ministry is entitled to obtain injunctive relief (without proving any damage sustained by it or by any third-party) or any other remedy against any actual or potential breach of the provisions of this Article.

5.05 Notice and Protective Order

If the Vendor or any of the Vendor's Personnel become legally compelled to disclose any OPS Confidential Information, the Vendor will provide the Ministry with prompt notice to that effect in order to allow the Ministry to seek one or more protective orders or other appropriate remedies to prevent or limit such disclosure, and it shall co-operate with the Ministry and its legal counsel to the fullest extent. If such protective orders or other remedies are not obtained, the Vendor will disclose only that portion of OPS Confidential Information which the Vendor is legally compelled to disclose, only to such Person or Persons to which the Vendor is legally compelled to disclose, and the Vendor shall provide notice to each such recipient (in co-operation with legal counsel for the Ministry) that such OPS Confidential Information is confidential and subject to non-disclosure on terms and conditions equal to those contained in the Agreement and, if possible, shall obtain each recipient's written agreement to receive and use such OPS Confidential Information subject to those terms and conditions.

5.06 FIPPA Records and Compliance

The Vendor and the Ministry acknowledge and agree that FIPPA applies to and governs all Records and may require the disclosure of such Records to third parties. Furthermore, the Vendor agrees:

- (a) to keep Records secure;
- (b) to provide Records to the Ministry within seven (7) calendar days of being directed to do so by the Ministry for any reason including an access request or privacy issue;
- (c) not to access any Personal Information unless the Ministry determines, in its sole discretion, that access is permitted under FIPPA and is necessary in order to provide the Deliverables;
- (d) not to directly or indirectly use, collect, disclose or destroy any Personal Information for any purposes that are not authorized by the Ministry;
- (e) to ensure the security and integrity of Personal Information and keep it in a physically secure and separate location safe from loss, alteration, destruction or intermingling with other records and databases and to implement, use and

maintain the most appropriate products, tools, measures and procedures to do so;

- (f) to restrict access to Personal Information to those of the Vendor's Personnel who have a need to know it for the purpose of providing the Deliverables and who have been specifically authorized by the Ministry Representative to have such access for the purpose of providing the Deliverables;
- (g) to implement other specific security measures that, in the reasonable opinion of the Ministry, would improve the adequacy and effectiveness of the Vendor's measures to ensure the security and integrity of Personal Information and Records generally; and
- (h) that any confidential information supplied to the Ministry may be disclosed by the Ministry where it is obligated to do so under FIPPA, by an order of a court or tribunal or pursuant to a legal proceeding;

and the provisions of this section shall prevail over any inconsistent provisions in the Contract.

5.07 Survival

The provisions of this Article shall survive any termination or expiry of the Contract.

Article 6 – Intellectual Property

6.01 Ministry Intellectual Property

The Vendor agrees that all Ministry Intellectual Property and every other right, title and interest in and to all concepts, techniques, ideas, information and materials, however recorded, (including images and data) provided by the Ministry to the Vendor, shall remain the sole property of His Majesty the King in right of Ontario at all times.

6.02 Newly Created Intellectual Property

The Ministry shall be the sole owner of any Newly Created Intellectual Property. The Vendor irrevocably assigns to and in favour of the Ministry and the Ministry accepts every right, title and interest in and to all Newly Created Intellectual Property in the Deliverables, immediately following the creation thereof, for all time and irrevocably waives in favour of the Ministry all rights of integrity and other moral rights to all Newly Created Intellectual Property in the Deliverables, immediately following the creation thereof, for all time.

6.03 Vendor Intellectual Property

Subject to Section 6.04, the Ministry agrees that all Intellectual Property and every other right, title and interest in and to all concepts, techniques, ideas, information and materials, however recorded, (including images and data) provided by the Vendor to the Ministry that is not: (i) Ministry Intellectual Property; (ii) Newly Created Intellectual Property or, (iii) Third Party Intellectual Property shall remain the sole property of the Vendor at all times.

6.04 Presumption Governing Intellectual Property Ownership

If the Vendor's Intellectual Property or Third Party Intellectual Property forms any part of the Deliverables, the Vendor shall notify the Ministry of such prior to the delivery of the particular Deliverable containing any such Vendor Intellectual Property or Third Party Intellectual Property. In the absence of any such notice, the presumption governing the Contract shall be that the Ministry is the sole owner of any Intellectual Property in any form contained in any of the Deliverables.

6.05 Vendor's Grant of License

To the extent that the Deliverables contain, in whole in part, Vendor Intellectual Property or Third Party Intellectual Property, the Vendor grants to the Ministry, including each Client, a perpetual, world-wide, non-exclusive, irrevocable, transferable, royalty free, fully paid up right and licence: (a) to use, modify, reproduce and distribute, in any form, those Deliverables; and (b) to authorize other Persons, including agents, contractors or sub-contractors, to do any of the former on behalf of the Ministry or a Client, the total consideration for which shall be payment of the Rates to the Vendor by the Ministry.

6.06 No Restrictive Material in Deliverables

The Vendor shall not incorporate into any Deliverables anything that would restrict the right of the Ministry or of any Client to modify, further develop or otherwise use the Deliverables in any way that the Ministry or the Client deems necessary, or that would prevent the Ministry or any Client from entering into any contract with any contractor other than the Vendor for the modification, further development of or other use of the Deliverables.

6.07 Vendor Representation and Warranty Regarding Third-Party Intellectual Property

The Vendor represents and warrants that the provision of the Deliverables shall not infringe or induce the infringement of any Third-Party Intellectual Property rights. The Vendor further represents and warrants that it has obtained assurances with respect to any Vendor Intellectual Property and Third-Party Intellectual Property that any rights of integrity or any other moral rights associated therewith have been waived.

6.08 No Use of Ontario Government Insignia

The Vendor shall not use any insignia or logo of His Majesty the King in right of Ontario except where required to provide the Deliverables, and only if it has received the prior written permission of the Ministry to do so.

6.09 Ministry May Prescribe Further Compliance

The Ministry reserves the right to prescribe the specific manner in which the Vendor shall perform its obligations relating to this Article.

6.10 Survival

The obligations contained in this Article shall survive the termination or expiry of the Contract.

Article 7 – Indemnity and Insurance

7.01 Vendor Indemnity

The Vendor shall indemnify and hold harmless the Indemnified Parties from and against all Losses and Proceedings, by whomever made, sustained, incurred, brought or prosecuted, arising out of, or in connection with, anything done or omitted to be done by the Vendor or the Vendor's Personnel, in the course of the performance of the Vendor's obligations under the Contract or otherwise in connection with the Contract. The obligations contained in this section shall survive the termination or expiry of the Agreement.

7.02 Vendor's Insurance

The Vendor hereby agrees to put in effect and maintain insurance for the Term, at its own cost and expense, with insurers having a secure A.M. Best rating of B + or greater, or the equivalent, all the necessary and appropriate insurance that a prudent person in the business of the Vendor would maintain including, but not limited to, the following:

(a) commercial general liability insurance on an occurrence basis for third party bodily injury, personal injury and property damage, to an inclusive limit of not less than two million dollars (\$2,000,000.00) per occurrence, two million dollars (\$2,000,000.00) products and completed operations aggregate. The policy is to include the following

- i. the Indemnified Parties as additional insureds with respect to liability arising in the course of performance of the Vendor's obligations under, or otherwise in connection with, the Contract;
- ii. contractual liability coverage;
- iii. cross-liability clause;
- iv. employers liability coverage (or compliance with the section below entitled "Proof of W.S.I.A. Coverage" is required);
- v. 30 day written notice of cancellation, termination or material change;
- vi. tenants legal liability coverage (if applicable and with applicable sub-limits); and,
- vii. non-owned automobile coverage with blanket contractual coverage for hired automobiles; and,

7.03 Proof of Insurance

The Vendor shall provide the Ministry with certificates of insurance, or other proof as may be requested by the Ministry, that confirms the insurance coverage as provided for in Section 7.02, and renewal replacements on or before the expiry of any such insurance. Upon the request of the Ministry, a copy of each insurance policy shall be made available to it. The Vendor shall ensure that each of its Subcontractors obtains all the necessary and appropriate insurance that a prudent person in the business of

the Subcontractor would maintain and that the Indemnified Parties are named as additional insureds with respect to any liability arising in the course of performance of the Subcontractor's obligations under the subcontract for the provision of the Deliverables.

7.04 Proof of W.S.I.A. Coverage

If the Vendor is subject to the *Workplace Safety and Insurance Act, 1997*, S.O. 1997, c. 16, Schedule A ("WSIA"), it shall submit a valid clearance certificate of WSIA coverage to the Ministry prior to the execution of the Agreement by the Ministry. In addition, the Vendor shall, from time to time at the request of the Ministry, provide additional WSIA clearance certificates. The Vendor covenants and agrees to pay when due, and to ensure that each of its Subcontractors pays when due, all amounts required to be paid by it/its Subcontractors, from time to time during the Term, under the WSIA, failing which the Ministry shall have the right, in addition to and not in substitution for any other right it may have pursuant to the Contract or otherwise at law or in equity, to pay to the Workplace Safety and Insurance Board any amount due pursuant to the WSIA and unpaid by the Vendor or its Subcontractors and to deduct such amount from any amount due and owing from time to time to the Vendor pursuant to the Contract together with all costs incurred by the Ministry in connection therewith.

7.05 Vendor Participation in Proceedings

The Vendor shall, at its expense, to the extent requested by the Ministry, participate in or conduct the defence of any Proceeding against any Indemnified Parties referred to in this Article and any negotiations for their settlement. The Ministry may elect to participate in or conduct the defence of any such Proceeding by notifying the Vendor in writing of such election without prejudice to any other rights or remedies of the Ministry under the Contract, Agreement, at law or in equity. Each party participating in the defence shall do so by actively participating with the other's counsel. The Vendor shall not enter into any settlement unless it has obtained the prior written approval of the Ministry. If the Vendor is requested by the Ministry to participate in or conduct the defence of any such Proceeding, the Ministry agrees to co-operate with and assist the Vendor to the fullest extent possible in the Proceedings and any related settlement negotiations. If the Ministry conducts the defence of any such Proceedings, the Vendor agrees to co-operate with and assist the Ministry to the fullest extent possible in the Proceedings and any related settlement negotiations. This section shall survive any termination or expiry of the Contract.

Article 8 – Termination, Expiry and Extension

8.01 Immediate Termination of Contract

The Ministry may immediately terminate the Contract upon giving notice to the Vendor where:

- (a) the Vendor is adjudged bankrupt, makes a general assignment for the benefit of its creditors or a receiver is appointed on account of the Vendor's insolvency;

- (b) the Vendor breaches any provision in Article 5 (Confidentiality and FIPPA) of the Agreement;
- (c) the Vendor breaches the Conflict of Interest paragraph in Article 2 (Nature of Relationship Between Ministry and Vendor) of the Agreement;
- (d) the Vendor, prior to or after executing the Agreement, makes a material misrepresentation or omission or provides materially inaccurate information to the Ministry;
- (e) the Vendor undergoes a change in control which adversely affects the Vendor's ability to satisfy some or all of its obligations under the Contract;
- (f) the Vendor subcontracts for the provision of part or all of the Deliverables or assigns the Contract without first obtaining the written approval of the Ministry;
or
- (g) the Vendor's acts or omissions constitute a substantial failure of performance;

and the above rights of termination are in addition to all other rights of termination available at law, or events of termination by operation of law.

8.02 Dispute Resolution by Rectification Notice

Subject to the above section, where the Vendor fails to comply with any of its obligations under the Contract, the Ministry may issue a rectification notice to the Vendor setting out the manner and time-frame for rectification. Within seven (7) Business Days of receipt of that notice, the Vendor shall either: (a) comply with that rectification notice; or (b) provide a rectification plan satisfactory to the Ministry. If the Vendor fails to either comply with that rectification notice or provide a satisfactory rectification plan, the Ministry may immediately terminate the Contract. Where the Vendor has been given a prior rectification notice, the same subsequent type of non-compliance by the Vendor shall allow the Ministry to immediately terminate the Contract.

8.03 Termination on Notice

The Ministry reserves the right to terminate the Contract, without cause, upon thirty (30) calendar days prior notice to the Vendor.

8.04 Termination for Non-Appropriation

If the Contract extends into a Fiscal Year subsequent to its execution, continuation of the Contract is conditional upon an appropriation of moneys by the Legislature of Ontario (the "Legislature") sufficient to satisfy payments due under the Contract. In the event that such moneys are not available as a result of: (i) non-appropriation by the Legislature for the Fiscal Year in which payment becomes due; and (ii) the payment being neither charged nor chargeable to an appropriation of the Legislature for a previous Fiscal Year, the Ministry may terminate the Contract upon giving notice

to the Vendor. Termination shall become effective on the date of the beginning of the first Fiscal Year for which funds have not been appropriated.

8.05 Vendor's Obligations on Termination

On termination of the Contract, the Vendor shall, in addition to its other obligations under the Contract and at law:

- (a) at the request of the Ministry, provide the Ministry with any completed or partially completed Deliverables;
- (b) provide the Ministry with a report detailing: (i) the current state of the provision of Deliverables by the Vendor at the date of termination; and (ii) any other information requested by the Ministry pertaining to the provision of the Deliverables and performance of the Contract;
- (c) execute such documentation as may be required by the Ministry to give effect to the termination of the Contract; and
- (d) comply with any other instructions provided by the Ministry, including, but not limited to, instructions for facilitating the transfer of its obligations to another Person.

This section shall survive any termination of the Contract.

8.06 Vendor's Payment Upon Termination

On termination of the Contract, the Ministry shall only be responsible for the payment of the Deliverables provided under the Contract up to and including the effective date of any termination. Termination shall not relieve the Vendor of its warranties and other responsibilities relating to the Deliverables performed or money paid. In addition to its other rights of hold back or set off, the Ministry may hold back payment or set off against any payments owed if the Vendor fails to comply with its obligations on termination.

8.07 Termination in Addition to Other Rights

The express rights of termination in the Agreement are in addition to and shall in no way limit any rights or remedies of the Ministry under the Contract, at law or in equity.

8.08 Expiry and Extension of Contract

The Contract shall expire on the original Expiry Date.

Article 9 – Occupational Health and Safety Requirements

9.01 Compliance with the Occupational Health and Safety Act

The Vendor must ensure that any subcontractor hired by the Vendor works in accordance with the Occupational Health and Safety Act R.S.O. 1990, CHAPTER O.1 (OHSA) and its regulations and any applicable Ontario Public Service (OPS) and site-specific health and safety requirements. The Vendor acknowledges that it

is the Employer of the subcontractor. The Vendor shall include in any of its agreements with its subcontractors, the ability to terminate the subcontractor for non-compliance with OHSA or its regulations, with the rules and policies of the Vendor or for failing to protect the safety of its workers.

The Ministry may stop the work where the Vendor fails to comply with OHSA or its regulations and an immediate danger to worker health and safety is observed. Failure or refusal by the Vendor to correct the observed violation, or willful or repeated non-compliance may, subject to Article 8 – Termination, Expiry and Extension, result in termination of the Contract.

Article 10 – Open Data

10.01 Publication of Data

It is Ontario's intention, in accordance with the [Open Data Directive](#) and as part of its commitment to open data, to publish and allow the public to use:

- (i) procurement contract data, including the name of the Vendor and total contract value; and,
- (ii) data created or collected as an output of a contract, except where Ontario chooses not to publish the data in accordance with the Open Data Directive, such as for privacy, confidentiality, security, legal or commercially sensitive reasons.

- SIGNATURE PAGE FOLLOWS –

In Witness Whereof the parties hereto have executed the Agreement effective as of the date first above written.

His Majesty the King in right of Ontario
as represented by the Minister of the Environment,
Conservation and Parks

Signature: _____

Name: _____

Title: _____

Date of Signature: _____

Pursuant to delegated authority

[**insert legal name of Vendor**]

Signature: _____

Name: _____

Title: _____

Date of Signature: _____

I have authority to bind the Vendor.

(signature page for the Supply and Delivery of a 5 Utility Vehicles for Ontario Parks)

Schedule 1: MANDATORY BUSINESS AND TECHNICAL REQUIREMENTS, DESCRIPTION OF DELIVERABLES, RATES AND SUPPLEMENTARY PROVISIONS

A. Mandatory Business and Technical Requirements

A.2 Warranty

Pursuant to Section 1.3.6 of the Deliverables, the warranty shall expire one (1) year from the date of delivery.

B. Rates and Reimbursements

B.1 Maximum Fee

Notwithstanding anything else in the Contract, the total amount payable by the Ministry to the Vendor under the Contract shall not exceed a maximum amount of up to **[**insert maximum contract amount and applicable taxes**] \$xxx.xx, plus \$xxx.xx** in applicable taxes (HST).

The total amount payable by the Ministry to the Vendor includes all disbursements (including travel, meal and accommodation expenses) and applicable taxes.

B.2 Rates

The Rates for the Deliverables are set out below and shall remain fixed during the Term of the Contract:

C. Billing Statements

The Vendor shall issue a waybill at time of delivery to the park for inventory purposes and issue the invoice to the Ministry within one week of completing delivery to the park, as to ensure timely payment by the ministry.

End of Schedule 1

Schedule 2: VENDOR PERFORMANCE FRAMEWORK

VENDOR PERFORMANCE FRAMEWORK

The Vendor's performance during the Term will be monitored and documented by the Ministry. The following performance measures will be assessed:

1. Contract administration Key Performance Measures (KPIs)

Ministry satisfaction with the Vendor's:

- (a) Invoice(s) (e.g. timeliness of invoicing and the accuracy of invoicing against agreed contract pricing)

1. Dissatisfied
2. Satisfied
3. Very Satisfied

2. Contract performance KPIs

Ministry satisfaction with the Vendor's:

- (a) Customer service provided to the Ministry.

1. Dissatisfied
2. Satisfied
3. Very Satisfied

- (b) Compliance with quality of goods and/or services received against Contract requirements.

1. Very dissatisfied
2. Dissatisfied
3. Neither dissatisfied nor satisfied
4. Satisfied
5. Very satisfied
6. Not applicable

- (c) Commitment to work with the Ministry to resolve issues or concerns.

1. Dissatisfied
2. Satisfied
3. Very Satisfied

- (d) Overall performance of the Vendor.

1. Dissatisfied
2. Satisfied
3. Very Satisfied

3. VPM Scorecard

Ministry:

Questionnaire completed by:

Contact Information:

Date questionnaire completed:

Summary of Engagement

Contract Details		
Contract Number:		
Title:		
Vendor:		
Contract Dates:		
Contract Value:		
Contract Manager:		
Vendor Meeting Type	Final review	
Overall Rating 1-3	Note: the overall rating is the average score of the answers (i.e., 1 to 3) in the questionnaire.	
Ministry Comments (do not include personal information)		
VPM Review Meeting date		
Vendor Representative, name and contact details		
Vendor comments		

End of Schedule 2

PART 3 – THE DELIVERABLES

1.0 THE DELIVERABLES

The contents of this section will be in the corresponding Deliverables section of the successful Bidder's Agreement. The successful Bidder shall be required to deliver upon all requirements set out in the Deliverables, at the pricing rate indicated within Commercial Envelope.

1.1. Objectives

The Ministry requires the Vendor to supply, deliver, and offload five (5) new Utility Vehicles (UTV or Side-by-Side), with one UTV being delivered to each of the following locations, Awenda, Bronte Creek, Bon Echo, Darlington and Silent Lake Provincial Parks, as specified in Section 1.3 The Deliverables.

1.2. Background and History

Utility Vehicles (UTVs or Side-by-Sides) are a key component of the Parks' continued operational functionality as they allow for special projects and day to day tasks to be completed. These may include but are not limited to access to more remote areas, transportation and collection of waste, collection of firepit contents, and transportation of staff and equipment.

1.3. Deliverables

1.3.1. Five (5) new Utility Vehicle

The Vendor shall supply five (5) new diesel Utility Vehicle that meets the following requirements:

- a) 2024 or newer model, with no prior use (i.e., not previously used, rented, leased or owned)
- b) Cab and Interior Requirements
 - i) Fully enclosed cab, hard sided
 - (1) Hard sided doors with glass windows that fully open
 - ii) Built in steel roll protection system (ROPS)
 - iii) Capacity for minimum of 2 occupants
 - (1) 2-point seat belts for driver and passenger(s)
 - iv) Air conditioning, Defroster and Heating (HVAC)
 - v) Front windshield wiper
- c) Exterior Requirements
 - i) Standard Running, brake and head lights; turn signals, and hazard lights
 - ii) Front push bar
 - iii) Side mirrors
 - iv) Tires
 - (1) designed for use on hard pack, turf, and paved roads
 - (2) shall not have an aggressive off-road type tread pattern

- (3) diameter of tire 24" – 26"
 - (4) tire width 10" – 12"
 - (5) rim size 10" – 12"
 - (6) 4-6 ply
 - v) For safety purposes, body colour to be of a primarily easily-visible (such as orange, red, bright green, bright blue, etc) and shall not be primarily dark coloured (such as black, grey, earth toned, or camouflage)
 - vi) Minimum wheelbase of 2040mm
 - vii) Maximum Dimensions
 - (1) 3200mm length
 - (2) 1700mm width
 - (3) 2100mm overall height
 - viii) Hydraulic Power Lift Steel Cargo Bed with rear tail gate
 - (1) Minimum Cargo bed dimensions of (WxLxD) 1400mm x 1000mm x 280mm to a maximum Cargo bed dimensions of (WxLxD) 1500mm x 1100mm x 300mm
 - ix) Minimum payload capacity of 600kg to a maximum payload capacity of 750kg
 - x) Maximum ground clearance (Front & Rear) of 279mm
- d) Drivetrain and Steering Requirements
- i) Minimum 24 horsepower, Diesel Engine
 - ii) Maximum rated speed of 25mph (40km/hr)
 - iii) 12 Volt battery of a minimum 670 Cold Cranking Amps
 - iv) Continuously variable hydro transmission (VHT)
 - v) Hydrostatic Power Steering
 - vi) Four-wheel Drive
 - vii) Front/Rear wet disk brakes
 - viii) 30L fuel capacity
 - ix) Rear 2" hitch for towing
 - x) Minimum 545kg towing capacity

1.3.2. Delivery

The Vendor shall supply the Utility Vehicles per the following requirements:

- a) Supply, deliver, offload the Utility Vehicles as soon as possible and before April 30, 2025
- b) Ensure all components not already installed/in place due to initial transportation requirements are installed per manufacturer's requirement
- c) Deliveries will be accepted any business day between the hours of 8:30 a.m. and 4:00 p.m. Eastern time. Delivery outside these hours will be allowed only if prior written permission is given by the Ministry, through the Ministry Representative. The Vendor shall contact the Ministry Representative in the event that delivery is delayed for any reason, either to change the delivery time or arrange other means that same day if possible.

- d) All applicable surcharges, freight and delivery charges shall be included in all prices quoted in the Pricing Form. Delivery charges shall not be accepted or paid if indicated as a surcharge on the invoice.
- e) The Vendor is required to ensure all Deliverables are delivered to:

Number of UTVs	Park	Address
1	Awenda Provincial Park	670 Concession 18 East Awenda Park Road Tiny, Ontario L9M2H7
1	Bronte Creek Provincial Park	1219 Burloak Drive, Oakville, Ontario L6M 4J7
1	Bon Echo Provincial Park	16151 Hwy 41 Cloyne, Ontario K0H 1K0
1	Darlington Provincial Park	1600 Darlington Park Road, Bowmanville, Ontario L1C 3K3
1	Silent Lake Provincial Park	1589 Silent Lake Park Road, Bancroft, Ontario K0L 1C0

1.3.3. Documents

The following documents shall be provided upon delivery of the Utility Vehicle to each of the 5 specified locations, by a representative of the Vendor:

- Bill of Sale (bill of sale to be in a form acceptable to the Ministry that includes, at a minimum, the Ministry's purchase order number, associate product serial numbers, make and model, the price of the Deliverables and HST, if applicable, listed separately.)
- Any and all registration related certificates pertaining to the ownership
- Warranty documentation for all supplied and installed equipment
- Preventive Maintenance Schedule

1.3.4. Inspection Upon Delivery and Final Acceptance

Once the Ministry is satisfied that the Deliverables are free of any defects and were not damaged in the course of delivery, the Ministry will give final acceptance by informing the Vendor that they may offload and setup of the Utility Vehicle.

If, upon delivery or offloading, the Ministry finds any of the Deliverables in a damaged or defective condition, or not in conformity with that Ministry's order, including, but not limited to, manufacturing defects, imperfections or design deficiencies, the Ministry shall have the right, exercisable in the Ministry's absolute discretion, not to accept the Deliverables.

If, the Deliverables are not accepted and a subsequent delivery is required at a later date, the date of accepted, or final delivery shall serve as the point of reference for all corresponding invoicing and warranties outline within the Agreement.

1.3.5. Training

(a) The Vendor shall provide a reasonable amount of on-site training to a minimum of two (2) Ministry personnel at the 5 specified delivery locations listed in Section 1.3.2 of Part 3 – The Deliverables [to be Schedule 1 of the finalized Agreement]. The Vendor shall obtain confirmation of date and time of the training from the Ministry Representative prior to delivery of the Utility Vehicle.

- (b) The training shall be performed by a person with detailed knowledge of the equipment and should consist of general instructions of the operation of equipment and safety procedures to be undertaken when operating the equipment in accordance with applicable regulations and guidelines set out by the Province of Ontario.
- (c) Training shall also include at a minimum, but is not limited to, the following:
 - Daily inspections and daily maintenance
 - Operation of the Utility Vehicle and safety procedures
 - Maintenance intervals
- (d) Any costs associated with training shall be included in the total cost submitted in the Bidder's Pricing Form set out in the Commercial Envelope of this RFB.
- (e) The Vendor shall provide English language manual(s) for the Utility Vehicle and attachments as follows: One (1) original paper copy and digital copy (USB, emailed document, web link)

1.3.6. Warranty

- a) The Vendor shall provide a minimum one-year manufacturer or equivalent warranty, that covers repair and replacement of parts for each Utility Vehicle (as deemed necessary by authorized representative) due to standard use of the Utility Vehicle without being of direct fault of the Ministry (e.g.: items covered – material defects and workmanship related; items not covered – damaged items outside of Vendor/manufacture control and regular maintenance items).
- b) The one-year warranty shall be all inclusive of all repairs, parts, technical support, shipping expenses, and labour expenses.
- c) The warranty will take effect upon the delivery of the Deliverables to the Park and expire one (1) year to the date.

- d) The Vendor shall have designated service representative(s) who have technical knowledge and expertise and who are capable of handling warranty services for the Deliverables. The Vendor must be able to facilitate the handling of warranty returns, recalls, and repairs within the province of Ontario either through its own facility or through arrangements with an authorized subcontractor. The Vendor must have this facility or these arrangements in place prior to delivery of the Deliverables.

1.3.7. Monitoring of Vendor Performance

The Vendor's performance during the Term will be monitored and documented by the Ministry. The following performance measures will be assessed:

- a) Quality of customer service provided to the Ministry;
- b) Vendor commitment to resolve issues to the satisfaction of the Ministry as they arise;
- c) Timeliness and accuracy/level of detail of Vendor reporting;
- d) Adherence to agreed upon meeting schedules and other Deliverable timelines;
- e) Timeliness of updated insurance certificates, WSIA clearance certificates and contractor security screening documentation, as applicable;
- f) Vendor invoice timeliness and accuracy against agreed upon pricing.

End of The Deliverables

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PART 4 - TERMS AND CONDITIONS

TERMS AND CONDITIONS

General Terms and Conditions

1.1 Bidder Representations and Warranties

By submitting a Bid for consideration, the Bidder in each case, agrees, confirms or warrants as follows:

- (i) to be bound to their Bid;
- (ii) that to its best knowledge and belief no actual or potential Conflict of Interest exists with respect to the submission of the Bid or performance of the contemplated contract other than those disclosed in the Form of Offer indicated in the Qualification Envelope. Where the Ministry discovers a Bidder's failure to disclose all actual or potential Conflicts of Interest, the Ministry may disqualify the Bidder or terminate any contract awarded to that Bidder pursuant to this procurement process;
- (iii) that it has accepted the provisions of this RFB and has prepared its Bid with reference to all of the provisions of the RFB including the attached Form of Agreement and has factored all of those provisions, including the insurance requirements, into its pricing assumptions and calculations and into the proposed costs indicated in the Commercial Envelope; and
- (iv) that its Bid was arrived at separately and independently, without conspiracy, collusion or fraud. See the [Competition Bureau of Canada](#) for further information.

1.2 General Instructions and Requirements

1.2.1 Bidders to Follow Instructions

Bidders should structure their Bids in accordance with the instructions in this RFB. Where information is requested in this RFB, any response made in a Bid should reference the applicable section numbers of this RFB where that request was made.

1.2.2 Conditional Bids May be Disqualified

A Bidder who submits conditions, options, variations or contingent statements to the terms set out in the RFB, including the Form of Offer and Form of Agreement, either as part of its Bid or after receiving notice of selection, may be disqualified. The Ministry acknowledges the need to add transaction-specific particulars to the Form of Agreement, but the Ministry will not otherwise make material changes to the Form of Agreement.

1.2.3 Bids in English

All Bids are to be in English only. Any Bids received by the Ministry that are not entirely in the English language may be disqualified.

1.2.4 Ministry's Information in RFB Only an Estimate

The Ministry and its advisors make no representation, warranty or guarantee, as to the accuracy of the information contained in this RFB, issued by way of addenda or contained in a modification to the RFB. Any quantities shown or data contained in this RFB or provided by way of a modification or addenda are estimates only and are for the sole purpose of indicating to Bidders the general size of the work.

It is the Bidder's responsibility to avail itself of all information necessary to prepare a Bid in response to this RFB.

1.2.5 Bidders Shall Bear Their Own Costs

The Bidder shall bear all costs associated with or incurred in the preparation and presentation of its Bid including, but not limited to, if applicable, costs incurred for interviews or demonstrations.

1.2.6 No Guarantee of Volume of Work or Exclusivity of Contract

The Ministry makes no guarantee of the value or volume of work to be assigned to the successful Bidder. The Agreement executed with the successful Bidder will not be an exclusive contract for the provision of the described Deliverables. The Ministry may contract with others for the same or similar Deliverables to those described in this RFB or may obtain the same or similar Deliverables internally.

1.2.7 RFB Terms

All rights and obligations that apply to this procurement process are found only in the RFB. For greater clarity, no other documents are to be read into this RFB or used to interpret or understand its terms or establish any rights or obligations related to this procurement.

1.2.8 Accessibility Obligations

The Province of Ontario is committed to the highest possible standard for accessibility. Vendor(s) are responsible for complying with the requirements under the Ontario Human Rights Code, the Ontarians with Disabilities Act, 2001 and Accessibility for Ontarians with Disabilities Act, 2005 ("AODA") and its regulations. In circumstances where Vendors are providing a service to the public on behalf of the Ministry, they may need to follow Ministry direction to ensure Ministry compliance with the AODA and its regulations (such as the Integrated Accessibility Standards Regulation). The vendor is responsible for applying Integrated Accessibility Standards Regulation and effective dates and timelines as they pertain to the Government of Ontario, as directed by the Ministry.

1.2.9 Trade Agreements

Bidders should note that procurements falling within the scope of:

- (a) Chapter 5 - Government Procurement of the Canadian Free Trade Agreement ("CFTA");
- (b) Chapter 9 – Public Procurement of the Trade and Cooperation Agreement between Ontario and Quebec ("OQTCA");
- (c) The World Trade Organization's (WTO) Revised Agreement on Government Procurement between the Government of Canada and the Government of the United States of America ("GPA"); or
- (d) Chapter 19 – Government Procurement of the Canada-European Union Comprehensive Economic and Trade Agreement ("CETA")

are subject, respectively, to that chapter or those agreements. For further reference, please see: (for the CFTA) the [Internal Trade Secretariat](#) website; (for Ontario/Quebec) the [Ontario Ministry of Economic Development, and Job Creation and Trade](#) website; (for the GPA) the [WTO](#) website; and (for CETA) the [Global Affairs Canada](#) website.

1.3 Communication after Issuance of RFB

1.3.1 All New Information to Bidders by way of Addenda

This RFB may only be amended by the Ministry by an addendum through the Ontario Tenders Portal eTendering System in accordance with this section. If the Ministry, for any reason, determines that it is necessary to provide additional information relating to this RFB, such information will be communicated to all Bidders through Addenda to the RFB by way of the Ontario Tenders Portal eTendering System. Each Addendum shall form an integral part of this RFB.

Each Addendum may contain important information including significant changes to this RFB. The onus remains on the Bidder to make any necessary amendments and to re-submit its Bid based on the Addenda. The Ministry may also be issuing Addenda included in the RFB as an attachment, which will contain responses to Bidders' questions. Bidders are responsible for obtaining all Addenda issued by the Ministry.

If the Ministry makes any changes to the RFB after a Bidder has submitted its Bid, the Bid will be invalidated on the Ontario Tenders Portal eTendering System, and the Bidder will need to re-submit its Bid. The Bidder will be required to update any new or modified sections of the RFB by way of the Ontario Tenders Portal eTendering System and re-submit its Bid.

1.3.2 Post-Deadline Addenda and Extension of RFB Closing Date and Time

The Ministry may, at its discretion, issue Addenda after the Deadline for Issuing Addenda and may also then extend the RFB Closing Date and Time for a reasonable amount of time.

1.3.3 Ministry May Verify Information or Seek Clarification and Incorporate Response into Bid

The Ministry reserves the right, but is not obliged, to verify or seek clarification and supplementary information relating to the verification or clarification from Bidders after the RFB Closing Date and Time including those related to an ambiguity in a Bid or in any statement made subsequently during the evaluation process. The response received by the Ministry from a Bidder shall, if accepted by the Ministry, form an integral part of that Bidder's Bid. However, Bidders are cautioned that any verifications or clarifications sought will not be an opportunity either to correct errors or change their Bids in any substantive manner.

Verifications or clarifications under this subsection may be made by whatever means the Ministry deems appropriate and may include contacting,

- (a) any person identified in the Bid; and
- (b) persons or entities other than those identified by any Bidder.

In submitting a Bid, a Bidder is deemed to consent to the Ministry's verification or clarification rights.

In the event that the Ministry receives information at any stage of the evaluation process, which results in earlier information provided by the Bidder being deemed by the Ministry to be inaccurate, incomplete or misleading, the Ministry reserves the right to revisit the Bidder's compliance with the mandatory requirements and/or adjust the scoring of rated requirements.

1.4 Bid Process Requirements

1.4.1 Bids must be submitted on time and in the Ontario Tenders Portal eTendering System

Bids must be submitted by the RFB Closing Date and Time through the Ontario Tenders Portal ("OTP") eTendering System. The OTP will not allow a Bidder to submit a Bid after the RFB Closing Date and Time. Any Bid submitted in any other manner will be disqualified and returned to the Bidder, if applicable. For the purpose of calculating time, the OTP electronic time-stamp on the submission shall govern.

Please note: Any Bids (or sections of a Bid) submitted through the OTP online messaging function will not be accepted.

1.4.2 Bid Irrevocable after RFB Closing Date

Bids shall remain irrevocable in the form submitted by the Bidder for the period set out in Section 1.1 - Procurement Details of this RFB running from the moment that the RFB Closing Date and Time has lapsed.

1.4.3 Bidders to Review RFB

Bidders shall promptly examine all of the documents comprising this RFB and:

- (a) shall report any errors, omissions or ambiguities; and
- (b) may direct questions or seek additional information,

through the Ontario Tenders Portal eTendering System online messaging function on or before the Bidder's Deadline for Questions to the RFB Contact set out at Section 1.1 - Procurement Details of this RFB. The time stamp on questions submitted by Bidder's through the OTP online messaging function shall be used to determine if the question was received on or before the Bidder's Deadline for Questions. No such communications are to be directed to anyone other than the RFB Contact or designate. The Ministry is under no obligation to provide additional information but may do so at its sole discretion.

It is the responsibility of the Bidder to seek clarification from the RFB Contact on any matter it considers to be unclear. The Ministry shall not be responsible for any misunderstanding on the part of the Bidder concerning this RFB or its process.

1.4.4 No Incorporation by Reference by Bidder

The entire content of a Bid should be submitted in a fixed form and the content of web sites or other external documents referred to in the Bid will not be considered to form part of its Bid.

1.4.5 Amending or Withdrawing Bids Prior to RFB Closing Date and Time

At any time prior to the RFB Closing Date and Time, a Bidder may amend or withdraw a submitted Bid. The right of Bidders to amend or withdraw includes amendments or withdrawals wholly initiated by Bidders and amendments or withdrawals in response to subsequent information made through an addendum to the RFB.

1.4.6 Bid to be Retained by the Ministry

The Ministry will not return any Bid, sample or accompanying documentation submitted by a Bidder including amended or withdrawn Bids.

1.5 Execution of Agreement, Notification and Debriefing

1.5.1 Selection of Bidder

The Ministry anticipates that it will select a Bidder within the irrevocable period. Notice of selection by the Ministry will be in writing. The Preferred Bidder shall execute the Agreement in the form attached to this RFB and satisfy any other applicable conditions of this RFB within the period of time set out to do so in Section 1.1 - Procurement Details of this RFB. This provision is solely to the benefit of the Ministry and may be waived by the Ministry at its sole discretion.

Bidders are reminded that there is a question and answer period available if they wish to ask questions or seek clarification about the terms and conditions set out in the Form of

Agreement. The Ministry will consider such requests for clarification in accordance with its right to do so under this RFB.

1.5.2 Failure to Enter Into Agreement

In addition to all of the Ministry's other remedies, if a selected Bidder fails to execute the Agreement or satisfy any other applicable conditions within the period of time set out to do so in Section 1.1 - Procurement Details of this RFB following the notice of selection, the Ministry may, in its sole discretion and without incurring any liability, rescind the selection of that Bidder and proceed with the selection of another Bidder.

1.5.3 Notification to Other Bidders of Outcome of Procurement Process

Once the successful Bidder and the Ministry execute the Agreement, the other Bidders will be notified by the Ministry in writing of the outcome of the procurement process, including the name of the successful Bidder, and the award of the contract to the successful Bidder.

1.5.4 Debriefing

Unsuccessful Bidders may request a debriefing after receipt of a notification of award. All requests must be in writing to the RFB Contact and must be made within sixty (60) days of notification of award. The intent of the debriefing information session is to aid the Bidder in presenting a better Bid in subsequent procurement opportunities. Any debriefing provided is not for the purpose of providing an opportunity to challenge the procurement process.

1.5.5 Bid Dispute

Bidders are advised that a formal bid dispute process is available, the details for which are available from the RFB Contact.

1.5.6 Prohibited Bidder Communications

Bidders shall address all questions and requests for clarification with respect to their Bids, or the RFB documents or the RFB process only to the RFB Contact set out at Section 1.1 - Procurement Details of this RFB.

Bidders shall not contact or make any attempt to contact:

- (a) any Ontario government employee or representative, other than the RFB Contact; or,
- (b) any other Bidder;

with respect to a Bid, the RFB documents, or the RFB process, at any time during the RFB process.

Without limiting the generality of the above, Bidders, shall not contact or attempt to contact:

- (a) any member of the Ministry evaluation team for the RFB;
- (b) any expert or advisor assisting the Ministry evaluation team;

- (c) any staff of the Premier of Ontario's office or the Ontario Cabinet Office;
- (d) any Member of the Ontario Provincial Parliament or his or her staff or advisors; or
- (e) any Member of the Ontario Provincial Cabinet or their staff or advisors;

on matters related to their Bids, the RFB documents, or the RFB process at any time during the RFB process.

1.5.7 Bidder Not to Make a Public Statement or Communicate With Media

A Bidder may not at any time directly or indirectly make a public statement or communicate with the media in relation to this RFB or any contract awarded pursuant to this RFB without first obtaining the written permission of the Ministry. Where a Bidder makes a communication contrary to this section the Ministry may disclose such information necessary to correct any inaccuracy of information.

1.5.8 Confidential Information of Ministry

All information provided by or obtained from the Ministry in any form in connection with this RFB either before or after the issuance of this RFB:

- (a) is the sole property of the Ministry and must be treated as confidential;
- (b) is not to be used for any purpose other than replying to this RFB and the performance of any subsequent Contract;
- (c) must not be disclosed without prior written authorization from the Ministry; and
- (d) shall be returned by the Bidders to the Ministry immediately upon the request of the Ministry.

1.5.9 Freedom of Information and Protection of Privacy Act

The *Freedom of Information and Protection of Privacy Act, R.S.O. 1990, c.F.31*, as amended, applies to information provided to the Ministry by a Bidder. A Bidder should identify any information in its Bid or any accompanying documentation supplied in confidence for which confidentiality is to be maintained by the Ministry. The confidentiality of such information will be maintained by the Ministry, except as otherwise required by law or by order of a court or tribunal. Bidders are advised that their Bids will, as necessary, be disclosed on a confidential basis, to the Ministry's advisers retained for the purpose of evaluating or participating in the evaluation of their Bids.

By submitting any Personal Information requested in this RFB, Bidders are agreeing to the use of such information as part of the evaluation process, for any audit of this procurement process and for contract management purposes. Where the Personal Information relates to an individual assigned by the successful Bidder to provide the Deliverables, such information may be used by the Ministry to compare the qualifications of such individual with any proposed substitute or replacement. If a Bidder has any questions about the collection and use of Personal Information pursuant to this RFB, questions are to be

submitted to the RFB Contact in accordance with the Bidders to Review RFB Section 1.4.3.

1.6 Reserved Rights and Governing Law

1.6.1 Reserved Rights of the Ministry

The Ministry reserves the right to:

- (a) make public the names of any or all Bidders; the name of the selected Bidder(s); and, the total price for the contract awarded;
- (b) request written clarification or the submission of supplementary written information in relation to the clarification request from any Bidder and incorporate a Bidder's response to that request for clarification into the Bidder's Bid;
- (c) assess a Bidder's Bid on the basis of:
 - (i) a financial analysis determining the actual cost of the Bid when considering factors including transition costs arising from the replacement of existing goods, services, practices, methodologies and infrastructure (howsoever originally established);
 - (ii) information provided by references;
 - (iii) the Bidder's past performance on previous contracts awarded by the Government of Ontario;
 - (iv) the information provided by a Bidder pursuant to the Ministry exercising its clarification rights under this RFB process; or
 - (v) other relevant information that arises during this RFB process;
- (d) waive non-compliance where, in the Ministry's sole discretion, such non-compliance is minor and not of a material nature, or to accept or reject in whole or in part any or all Bids, with or without giving notice. Such minor non-compliance will be deemed substantial compliance and capable of acceptance. The Ministry will be the sole judge of whether a Bid is accepted or rejected;
- (e) verify with any Bidder or with a third party any information set out in a Bid;
- (f) check references other than those provided by any Bidder;
- (g) disqualify any Bidder whose Bid contains misrepresentations or any other inaccurate or misleading information;
- (h) disqualify any Bid or rescind any contract award where the Bidder either: fails to disclose; or, is determined to have an actual or perceived unfair advantage or Conflict of Interest determined to be material by the Ministry;
- (i) disqualify any Bidder or the Bid of any Bidder who has engaged in conduct prohibited by this RFB;
- (j) make changes, including substantial changes, to this RFB provided that those changes are issued by way of a modification in the manner set out in this RFB;

- (k) select any Bidder other than the Bidder whose Bid reflects the lowest cost to the Ministry or the highest score;
- (l) cancel this RFB process at any stage;
- (m)cancel this RFB process at any stage and issue a new RFB for the same or similar Deliverables;
- (n) accept any Bid in whole or in part; or
- (o) reject any or all Bids;

and these reserved rights are in addition to any other express rights or any other rights which may be implied in the circumstances and the Ministry shall not be liable for any expenses, costs, losses or any direct or indirect damages incurred or suffered by any Bidder or any third party resulting from the Ministry exercising any of its express or implied rights under this RFB.

By submitting its Bid, the Bidder authorizes the collection by the Ministry of the information set out under (e) and (f) in the manner contemplated in those subparagraphs.

1.6.2 Governing Law of RFB Process

This RFB process shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein.

1.7 Supplementary Terms and Conditions

1.7.1 Occupational Health and Safety Requirements

Vendor(s) are required to comply with the Occupational Health and Safety Act (“OHSA”) and regulations and applicable OPS and site-specific health and safety requirements. Vendor(s) are responsible for meeting all of the ‘employer’ obligations under the OHSA and shall ensure that all work is carried out safely. The Vendor shall ensure that all subcontractors (hired by the Vendor) work in accordance with the OHSA and its regulations.

1.7.2 Publication of Data and Consent

It is Ontario’s intention, in accordance with the [Open Data Directive](#) and as part of its commitment to open data, to publish and allow the public to use:

- (i) procurement contract data, including the name of the Preferred Bidder and total contract value; and,
- (ii) data created or collected as an output of a contract,

except where Ontario chooses not to publish the data in accordance with the [Open Data Directive](#), such as for privacy, confidentiality, security, legal or commercially-sensitive reasons.

Each Bidder, by submitting a Bid, expressly consents to the above and agrees that, if it becomes the Preferred Bidder, it will not object to the above being incorporated into its contract.

End of Terms and Conditions